

Delaware County Commissioners, February 16th, 2026

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=rPMqmZ4sZJk
Publication Date	2026-02-17T03:00:31Z
Target Category	delaware_county

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Delaware County Commissioners Meeting Report

Meeting Date: February 16, 2026

Report Type: Comprehensive Municipal Meeting Summary

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the Delaware County Commissioners meeting on Monday, February 16, 2026, at 9:00 AM [00:00:03](#).
- **Attendance:**
 - **Board Members Present:** Commissioner Carol Brand, Commissioner Henry, and Commissioner Sherry Reagan (Presiding Officer).
 - **Members Absent:** None noted.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** The meeting opened with the Pledge of Allegiance [00:00:08](#), followed by a roll call of commissioners [00:00:32](#).
- **Approval of Minutes:** Corrections submitted for the February meeting minutes were noted as incorporated. The minutes were approved by a roll call vote (Henry: Yes, Brand: Yes, Reagan: Yes) [00:09:30](#).

4. Substantive Business & Board Action

- **00:04:30 Scholar House Program Update & Funding**
 - **Sponsor / Presenter:** Mr. Eert, Scholar House representative.
 - **Deliberation Summary:** Mr. Eert provided an update on Scholar House, a program operating in Muncie (partnered with Ball State University) that assists impoverished single mothers (many from domestic violence, homelessness, or trafficking situations) in pursuing higher education and trade credentials. While 45 individuals are in the program, only 7 are in housing due to state budget cuts impacting Ball State's Shidler apartments remodel. A waiting list of approximately 130 exists in Delaware County/Muncie. Commissioner Henry proposed supporting the program with economic development funds (EDIT Health and Wellness project fund #9).
 - **Action & Vote Disposition:** Approved a \$25,000 allocation for the current year via roll call vote (Brand: Yes, Henry: Yes, Reagan: Yes) **00:09:16**.
- **00:11:42 Justice Center Auditorium Architectural & Code Services Contract**
 - **Sponsor / Presenter:** County staff / Commissioner presentation.
 - **Deliberation Summary:** Proposal from BW for \$47,500 (not to exceed: \$35,000 for architectural/structural/MEP, \$5,000 for code compliance, \$7,500 for consulting/oversight) to analyze and redesign unapproved/un-stamped building uses at the Justice Center (such as unauthorized exit door usage and partition walls built without State Fire Marshal approval).
 - **Action & Vote Disposition:** Approved contract to be paid out of EDIT Capital Projects Fund (#12) by roll call vote (Brand: Yes, Henry: Yes, Reagan: Yes) **00:14:01**.
- **00:14:22 Lease Agreement Addendum – My Opco LLC (Addiction Recovery Center)**
 - **Sponsor / Presenter:** County staff / Danielle.
 - **Deliberation Summary:** My Opco LLC requested permission per their lease language to invest \$152,399 of private funds (non-taxpayer money) into exterior and interior improvements for the addiction recovery center. They have also progressed on state permits and Medicare approval.
 - **Action & Vote Disposition:** Approved lease addendum by roll call vote (Henry: Yes, Brand: Yes, Reagan: Yes) **00:15:36**.
- **00:15:43 Courthouse Bell Relocation Proposal**
 - **Sponsor / Presenter:** County staff / Commissioner Reagan.
 - **Deliberation Summary:** The historic courthouse bell currently sits on private property (adjacent apartments whose owners requested its relocation). A proposal from the Jennings family for a flat price of \$22,000 covers moving, site preparation, lighting, and permits to relocate the bell to the circular flower bed outside the main entrance. Funding to be drawn from EDIT project #12.
 - **Action & Vote Disposition:** Approved proposal by roll call vote (Brand: Yes, Henry: Yes, Reagan: Yes) **00:17:37**.

- **00:17:47 Ordinance 2025-038A: Expert Annuity Principal Plan**
 - **Sponsor / Presenter:** County staff.
 - **Deliberation Summary:** Reinstatement of the expert annuity principal plan to resolve administrative challenges faced by the auditor's office following the removal of non-county sponsored payroll plans.
 - **Action & Vote Disposition:** Approved adoption by roll call vote (Henry: Yes, Brand: Yes, Reagan: Yes) [00:18:34](#).
 - **00:18:41 Ordinance 2026-01: Amending Title 5, Chapter 14 of Delaware County Code (Public Right-of-Way)**
 - **Sponsor / Presenter:** County Commissioners.
 - **Deliberation Summary:** Discussion regarding the proposed ordinance regulating activities and permits in public rights-of-way. Commissioners clarified that the intent was to prevent uncoordinated contractor damage, safety hazards (e.g., unmarked 3-foot deep digs), and unnotified road blockages impacting 911 dispatch—not to target agricultural loading or routine mailbox maintenance. Feedback from Farm Bureau and local farmers prompted requests for clearer language.
 - **Action & Vote Disposition:** Voted to table the ordinance to allow for public comment and proposed language revisions by roll call vote (Brand: Yes, Henry: Yes, Reagan: Yes) [00:27:23](#).
 - **00:27:35 Ordinance 2026-2: Vacation of Alleys, Streets, and Part of Mount Pleasant Original Plat**
 - **Sponsor / Presenter:** Kathy Van Ice (Ashton Land Surveyor).
 - **Deliberation Summary:** Request to vacate undeveloped streets, alleys, and a portion of the original 1837 plat of Mount Pleasant (Perry Township, west of Main Street/740 South) to correct zoning splits and bring Honey Rock Farms property into compliance. Received a unanimous favorable recommendation from the planning commission.
 - **Action & Vote Disposition:** Approved request by roll call vote (Henry: Yes, Brand: Yes, Reagan: Yes) [00:29:28](#).
 - **00:29:48 Insurance Program Transition (USI Executive Summary)**
 - **Sponsor / Presenter:** County staff / USI representatives.
 - **Deliberation Summary:** Proposal to transition from a guaranteed cost liability program with Travelers to a self-insured retention program (\$250,000 deductible) utilizing Chubb and Apex, with third-party claims management support from Tristar and in-house legal oversight of nuisance claims by Brooks Trousal. Projected first-year savings of approximately \$300,000, with ongoing year-over-year savings.
 - **Action & Vote Disposition:** Approved transition from Travelers to Chubb/Apex by roll call vote (Brand: Yes, Henry: Yes, Reagan: Yes) [00:34:28](#).
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5. Open Public Comment / Citizen Forum

- **00:43:59 Cheryl Swingley:** Addressed the board to compliment Commissioner Sherry Reagan and local stakeholders for establishing a trial agreement allowing Second Harvest Food Bank to utilize the county fairgrounds for food distribution tailgates. Noted that the initial February 12th tailgate served 320 cars successfully, highlighted the critical need for food assistance, and urged long-term, no-charge use of the fairgrounds.
 - **00:47:24 Mike Catherine (1000 East County Road 700 North):** Spoke regarding proposed Ordinance 2026-01 (Right-of-Way). Challenged the county's claim to a blanket 20-foot right-of-way beyond existing edge-of-pavement lines, citing past utility easement disputes (AT&T, gas line replacements, fiber optic projects). Argued that asserting uncompensated right-of-way claims violates the Fifth Amendment Takings Clause.
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6. Administrative Updates & Adjournment

- **Department Head & Staff Updates:**
 - **Highway Department:** Material bids were opened for AB Best LLC, IMI, Brooks Construction, and ENB paving. Voted to take bids under advisement to create a comparative table summary for the next meeting **00:35:19**.
 - **Community Corrections:** Jay Miranda announced Delaware County received its seventh consecutive opioid grant totaling \$60,000 from the Indiana Office of Court Services, funding peer recovery, self-reporting kiosks, and probationer addiction scholarships **00:38:11**.
 - **Courts / CASA:** Emily Anderson and Nikki Bosan requested renewal of the VOCA grant (\$150,000 requested for child advocates, reflecting a 40% state funding cut), noting a CASA training class begins April 1st **00:39:14**.
 - **Human Resources:** Josh Jarvis reported that employee health clinic services transition from IU Health to Marathon on March 3rd (portal access opens February 23rd). Employee handbook drafts will be distributed to department heads for review **00:43:45**.
- **Board Announcements:**
 - **Cybersecurity Training:** Commissioner Brand reminded employees that completed "No-Before" cybersecurity training is mandatory within two-week windows, warning that non-compliant credentials face being disabled **00:51:19**.
 - **Justice Center Roof:** An independent engineering report by Advanced Building Products LLC regarding roof leaks at the Justice Center will be forwarded by legal counsel to the original roofing contractor for a formal response **00:51:59**.
 - **Legislative Watch:** Commissioners noted monitoring state legislation including SB 270 / HB 1315 (township consolidation), SB 142 (Innkeeper/tourism tax board governance), SB 179 (community crossing matching grants), SB 4 (community

mental health funding criteria regarding executive pay), and SB 113 (local election record retention extension from 22 to 34 months) [00:53:29](#).

- **Adjournment:** Approved a motion to recess/adjourn by roll call vote (Henry: Yes, Brand: Yes, Reagan: Yes) [00:57:07](#).

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